



Bureau of Experts at the Council of Ministers
Official Translation Department

Law of the Council of Ministers

Royal Order No. A/13
August 21, 1993

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Law are provided in the Appendix.

For any comments or inquiries, please contact the Official Translation Department at:

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No.: A/13

Date: 3/3/1414H

**With the help of Allah,
We, Fahd bin Abdulaziz Al Saud,
King of the Kingdom of Saudi Arabia,**

Upon perusal of the Basic Law of Governance, promulgated by Royal Order No. A/90, dated 27/8/1412H;

Upon perusal of the Law of the Council of Ministers, promulgated by Royal Decree No. 38, dated 22/10/1377H, and the amendments thereto;

Upon perusal of the Law of the Shura Council, promulgated by Royal Order No. A/91, dated 27/8/1412H; and

Upon perusal of Royal Decree No. M/23, dated 26/8/1412H;

Have ordered the following:

First:

The Law of the Council of Ministers, attached herewith, shall be approved.

Second:

This Law shall supersede the Law of the Council of Ministers, promulgated by Royal Decree No. 38, dated 22/10/1377H, and the amendments thereto.

Third:

Upon the entry into force of this Law, all applicable laws, orders, and resolutions shall remain in effect until they are amended in accordance therewith.

Fourth:

This Law shall be published in the Official Gazette, and shall take effect 90 days from commencement of the Shura Council's term specified in the Royal Order initiating the Council.

**Signed
Fahd bin Abdulaziz**



Law of the Council of Ministers

General Provisions

Article 1

The Council of Ministers is a regulatory body presided over by the King.

Article 2

The city of Riyadh is the seat of the Council of Ministers. Meetings of the Council may be held in other locations in the Kingdom.

Article 3

A member of the Council of Ministers shall:

- a) be a Saudi national by descent and upbringing;
- b) be well-known for being upright and competent; and
- c) not have been convicted of a crime impinging on religion or honor.

Article 4

Members of the Council of Ministers may not assume their duties until they take the following oath: "I swear by Almighty Allah to be loyal to my religion, then to my King and my country. I swear not to reveal any of the State's secrets, to protect its interests and laws, and to perform my duties with honesty, integrity, and sincerity".

Article 5

Membership of the Council of Ministers may not be combined with any other government post, unless it is deemed necessary by the Prime Minister.

Article 6

A member of the Council of Ministers may not, while in office, buy or lease, directly or through a proxy, or by public auction, any of the properties of the State. He may not sell or rent any of his property to the government. Furthermore, he may not engage in any commercial or financial activities or accept board membership in any company.

Article 7

Meetings of the Council of Ministers are presided over by the Prime Minister (the King), or one of his deputies. The resolutions of the Council of Ministers shall become final upon the King's approval.



Article 8

Members of the Council of Ministers shall be appointed, relieved from office, and have their resignations accepted by royal order. Their responsibilities shall be specified in accordance with Articles 57 and 58 of the Basic Law of Governance.

The Internal Regulations of the Council shall stipulate their rights.

Article 9

The term of the Council of Ministers shall not exceed four years, during which a new Council shall be reconstituted by royal order. If the term expires before the reconstitution of the new Council, the current Council shall continue performing its duties until the new one is reconstituted.

Article 10

A minister shall be in charge of his ministry and shall be the final authority in managing its affairs and shall carry out his duties in accordance with the provisions of this Law and other laws and regulations.

Article 11

A. Only a minister may act on behalf of another minister in the Council of Ministers, pursuant to an order issued by the Prime Minister.

B. The powers of the absent minister shall be assumed by the acting minister.

Formation of the Council of Ministers

Article 12

The Council of Ministers shall be composed of the following:

- a) Prime Minister;
- b) Deputies of the Prime Minister;
- c) Ministers with portfolios;
- d) Ministers of State appointed as members of the Council of Ministers by royal order; and
- e) Counselors to the King, who are appointed as members of the Council of Ministers by royal order.

Article 13

The right to attend meetings of the Council of Ministers shall be exclusive to its members and the Secretary General of the Council of Ministers. At the request of the Prime Minister, or at the request of a Council member subject to the Prime Minister's approval, an official or expert may attend the meetings of the Council, in a non-voting capacity, to present information and clarifications.



Article 14

A meeting of the Council of Ministers shall not be valid unless attended by two-thirds of its members. Resolutions shall not be valid unless passed by a majority of the members present. In case of a tie, the Prime Minister shall have the casting vote. In extraordinary cases, Council meetings may be considered valid with half of the members present. In such cases, resolutions shall not be considered valid without the approval of two-thirds of the members present. The Prime Minister shall determine such cases.

Article 15

The Council of Ministers shall not, unless deemed necessary, pass a resolution on a matter related to the activities of a ministry except in the presence of the minister concerned or his designee.

Article 16

Deliberations of the Council shall be confidential. As a general rule, its resolutions shall be made public, except when deemed classified pursuant to a resolution by the Council.

Article 17

Members of the Council of Ministers shall be tried for violations they commit in the discharge of their official duties, pursuant to a special law which states the violations and specifies the procedures for prosecution and trial as well as the formation of the tribunal.

Article 18

The Council of Ministers may form committees from among its members or from non-members to review an item on the agenda of the Council and prepare a special report thereon. The Internal Regulations of the Council shall specify the number of committees and procedures thereof.

Powers of the Council of Ministers

Article 19

Without prejudice to the Basic Law of Governance and the Law of the Shura Council, the Council of Ministers shall have the power to set the internal, foreign, financial, economic, educational, and defense policies as well as the general affairs of the State, and shall oversee their implementation; and it shall review Shura Council resolutions. It shall have the executive authority and be the final authority in the financial and administrative affairs of all ministries and other government agencies.



Legislative Affairs

Article 20

Laws, treaties, international agreements, and concessions shall be issued and amended by royal decrees upon review by the Council of Ministers, without prejudice to the Law of the Shura Council.

Article 21

The Council of Ministers shall review draft laws and regulations brought before it and vote on each article separately and then as a whole, in accordance with the procedures set forth in the Internal Regulations of the Council.

Article 22

Each minister shall have the right to propose a draft law or regulation related to the affairs of his ministry. Each member of the Council of Ministers shall have the right to propose issues of interest to be discussed by the Council upon the approval of the Prime Minister.

Article 23

All decrees shall be published in the Official Gazette and shall enter into force on the date of publication unless another date is stipulated.

Executive Affairs

Article 24

The Council, being the direct executive authority, shall have full power over all executive and administrative affairs. The following shall be included in its executive powers:

1. monitoring the implementation of laws, regulations, and resolutions;
2. establishing and organizing public institutions;
3. overseeing the implementation of the general development plan; and
4. forming committees to review the performance of ministries and other government agencies or in relation to any specific case. Such committees shall submit their findings at a time set by the Council. The Council shall review such findings and may accordingly form investigative committees to decide on such findings, in accordance with laws and regulations.



Financial Affairs

Article 25

The government may not conclude a loan contract without the approval of the Council of Ministers and the issuance of a royal decree to that effect.

Article 26

The Council of Ministers shall review the State budget and vote on it, chapter by chapter. Such budget shall be promulgated by royal decree.

Article 27

Any supplement to the budget shall only be made by royal decree.

Article 28

The Minister of Finance and National Economy shall submit the closing account for the State's ending fiscal year to the Prime Minister who shall refer it to the Council of Ministers for approval.

Presidency of the Council of Ministers

Article 29

The King, as Prime Minister, shall direct the State's public policy; ensure guidance, coordination, and cooperation among the various government agencies; ensure harmony, continuity, and unity in all functions of the Council of Ministers; supervise the Council of Ministers, ministries, and government agencies; and monitor the implementation of laws, regulations, and resolutions.

All ministries and other government agencies shall submit to the Prime Minister within 90 days from the beginning of each fiscal year, a report on their achievements in light of the general development plan for the ending fiscal year. The report shall include the difficulties encountered and proposals to ensure the proper conduct of business.

Administrative Structure of the Council of Ministers

Article 30

The administrative structure of the Council of Ministers shall be composed of the following agencies:

1. The Office of the Presidency of the Council of Ministers.
2. The General Secretariat of the Council of Ministers.
3. The Bureau of Experts.

The Internal Regulations of the Council of Ministers shall specify the structure of these agencies, their respective powers, and the manner of discharging their duties.



Article 31

The Internal Regulations of the Council of Ministers shall be issued by royal order.

Article 32

Amendments to this Law shall be in the manner it was promulgated.



Appendix

Amendments

August 3, 2011 (Ramadan 3, 1432H)

Royal Order No. A/151 provides for the following:

- Amending Article 30 to read as follows:

"The administrative structure of the Council of Ministers shall be composed of the following agencies:

1. The General Secretariat of the Council of Ministers.
2. The Bureau of Experts.

The Internal Regulations of the Council of Ministers shall specify the structure of both agencies as well as their respective powers, manner of discharging their duties, and affiliation with the Royal Court".

- Replacing the phrase "The Office of the Presidency of the Council of Ministers" with the phrase "The Royal Court" and replacing the phrase "Chief of the Office of the Presidency of the Council of Ministers" with the phrase "Chief of the Royal Court" wherever these two phrases are mentioned in laws, orders, or decisions.

December 27, 2018 (Rabi' II 20, 1440H)

Royal Order No. A/141 provides for the following:

- Amending Article 30 to read as follows:

"The Internal Regulations of the Council of Ministers shall specify the administrative structure of its agencies as well as their respective powers and the manner of discharging their duties".